

EXHIBIT BUNDLE

TEMPORARY WORKS DESIGN CHECK CERTIFICATE TWDC-BW-07

with forensic metadata report and checker's register extract

Exhibit reference	SA/09 (certificate); NDF/11 (metadata report); HB/3 (Halbrook register extract); HB/4 (Halbrook invoice ledger); NAP/1 (email of 26.10.2023)
Significance	Central to the allegations of fraud by false representation (s.2 Fraud Act 2006), forgery (s.1 Forgery and Counterfeiting Act 1981) and to the insurance avoidance issue.

PART 1 — THE CERTIFICATE AS PRODUCED

Reproduced in full from the PDF file produced by Meridian Structures Limited on 24 November 2023.

Field	Entry
Certificate no.	TWDC-BW-07
Project	Brackenmoor Wharf Redevelopment, Hunslet, Leeds LS10 1QF
Principal contractor	Meridian Structures Limited
Temporary works item	Cantilevered loading bay LB-7, east elevation, level 7 (deck +21.4 m)
Design reference checked	SD-BW Rev. C, sheets 4 and 7; calculation pack TWC/BW/07 (14 pp.)
Check category (BS 5975:2019)	Category 2
Design safe working load certified	2,000 kg uniformly distributed, excluding self-weight
Design wind case	Not stated
Tie requirement	As drawing. Checker's note: 'tying to be verified by PC prior to loading'
Limitations / assumptions	'Assumes all ties and facade fixings installed in accordance with SD-BW Rev C and verified by the principal contractor. No allowance for out-of-plane loading from crane-landed loads. Not valid unless countersigned by the Temporary Works Coordinator.'
Countersignature of TWC	[BLANK]
Checker	N. Ashgrove-Pike CEng MICE, Halbrook Temporary Works Consultants Ltd
Checker's signature	[typed name in script font; no wet signature, no digital certificate]
Date on face of certificate	27 October 2023
Halbrook job number	[BLANK]

PART 2 — METADATA REPORT (Northmoor Digital Forensics Ltd, NDF-24-0331 s.9)

Property	Value	Comment
File name	TWDC-BW-07 signed.pdf	'signed' in file name; no signature object present
File created (filesystem)	13 Nov 2023 22:41:07 GMT	Server 'MSL-FS02', share \\Projects\BW\TW
PDF /CreationDate	D:20231113224058Z	13 Nov 2023 22:40:58 UTC
PDF /ModDate	D:20231116081049Z	16 Nov 2023 08:10:49 UTC
PDF /Producer	Microsoft: Print To PDF	Consistent with printing from Word, not from a CAD/eng. system
PDF /Author	r.delacroix-hale	Meridian domain account
PDF /Creator	Microsoft Word for Microsoft 365	-
XMP xmp:MetadataDate	2023-11-13T22:40:58Z	-
XMP DerivedFrom	HALBROOK_TWDC_TEMPLATE_v3.docx	Template file found on the same Meridian share
Template last modified	13 Nov 2023 22:12:33 GMT	Modified by account r.delacroix-hale
Template origin	Received as email attachment from n.ashgrove-pike@halbrook-twc.co.uk, 4 Aug 2023	Legitimate receipt of a blank template

Property	Value	Comment
Digital signature	None	Halbrook's certificates for LB-1 to LB-6 all bear a PAdES signature
Fonts embedded	Calibri; 'Segoe Script' used for the checker name	LB-1 to LB-6 certificates use Halbrook house font 'Frutiger LT'
Print history	Printed 16 Nov 2023 08:09 to MSL-HP-04 (head office, Thorpe Park)	-

Examiner's qualification: filesystem and PDF dates are capable of manipulation and are not conclusive of the date of authorship. The examiner, Mr B. Oyeleke-Sturridge, states: 'My conclusion is that the file object was generated on 13 November 2023. I cannot exclude the possibility that it was generated on that date as a re-typing of a genuine earlier certificate that has since been lost. I have seen no evidence of such an earlier certificate.'

PART 3 — HALBROOK TEMPORARY WORKS CONSULTANTS LTD: REGISTER AND LEDGER

Halbrook job no.	Item	Cert. no.	Date issued	Invoiced	Digital sig.
H-23-2214	Loading bay LB-1	TWDC-BW-01	22 Aug 2023	Inv. 9911, £780	Yes
H-23-2215	Loading bay LB-2	TWDC-BW-02	22 Aug 2023	Inv. 9911, £780	Yes
H-23-2260	Loading bay LB-3	TWDC-BW-03	14 Sep 2023	Inv. 9958, £780	Yes
H-23-2261	Loading bay LB-4	TWDC-BW-04	14 Sep 2023	Inv. 9958, £780	Yes
H-23-2288	Loading bay LB-5	TWDC-BW-05	05 Oct 2023	Inv. 9994, £780	Yes
H-23-2289	Loading bay LB-6	TWDC-BW-06	05 Oct 2023	Inv. 9994, £780	Yes
(no entry)	Loading bay LB-7	TWDC-BW-07	(no entry)	(not invoiced)	No

Halbrook's managing director, Ms Ines Halloran-Vecchio, states in a letter dated 3 March 2024: “We have no record of instruction, no job number, no fee and no issued certificate in respect of loading bay LB-7. Our position is that we did not issue TWDC-BW-07. We reserve our position as to whether Mr Ashgrove-Pike carried out any work outside our systems. He resigned on 12 January 2024.”

PART 4 — THE ASHGROVE-PIKE EMAIL (exhibit NAP/1)

Recovered from Meridian's mail server. Not present in Halbrook's own archive (Halbrook states its retention period for the relevant mailbox was 90 days and the mailbox was deleted on Mr Ashgrove-Pike's resignation).

From: n.ashgrove-pike@halbrook-twc.co.uk
To: r.delacroix-hale@meridianstructures.co.uk
Sent: Thu 26 October 2023 18:47
Subject: RE: BW - level 7 bay

“Ruaridh — I’ve run the level 7 bay through by hand this afternoon. It works but it is tight and it is nothing like the lower bays — the cantilever is longer and you have the wind at that height. I’d want to see the tie schedule signed off before anyone puts a panel on it. I’ll formalise it when I’m back in the office next week and get a job number opened. Don’t use anything until you have the certificate. N.”

There is no reply on the Meridian server. Mr Ashgrove-Pike has not been interviewed. Through solicitors in Dubai he has stated that he “never issued a certificate for the level 7 bay, never approved a two tonne loading, and would not have done so”, but has declined to make a signed statement or to attend.

PART 5 — THE LOADING FIGURES IN ISSUE

Source	Stated SWL for LB-7	Status
Drawing SD-BW Rev. B (superseded 19.09.2023)	1,000 kg	Uncontrolled copy; found in site cabin photograph of 02.08.2023
Drawing SD-BW Rev. C (current)	750 kg	Only revision HSE has authenticated
Certificate TWDC-BW-07	2,000 kg	Authenticity disputed
Signage physically on the bay	Not recovered	Bay destroyed; no photograph of signage exists
Actual load at failure (HSE calc.)	approx. 1,410 kg	2 panels at 605 kg + 2 operatives + tools/tag line